

The State and another

4. It has been noticed that the alleged date of occurrence was not mentioned in FIR however it was recorded that the petitioner allegedly had drawn the cheque for the date of 30.01.2018 whereas the case was registered on 19.04.2018. It was not mentioned in the FIR as to when the said cheque was drawn. The instant FIR was registered after a delay which, on the perusal of the FIR, cannot be determined. No explanation has been mentioned in the FIR for this extreme deferral of getting the FIR registered .It is further noteworthy that the cheque related to the account of the father of the petitioner and not his account. Learned Deputy Prosecutor General and counsel for the complainant stated that the petitioner is involved in as many as six other cases of similar nature

however, conceded that he has not been convicted in any of them. Even otherwise the august Supreme Court of Pakistan in case of Qurban Ali v. The State and others (2017 SCMR 279) has held as under:-

“So far as the list of different criminal cases placed on record by the learned counsel for the complainant through C.M.A. No.486-L of 2016 registered against accused side in general and petitioner Qurban Ali in particular is concerned, suffice it to observe, at this stage, this Court is only seized of the instant bail application and the effect/impact of the aforesaid criminal record against petitioner and his co-accused is not relevant for disposing of the instant petition.”

Learned Deputy Prosecutor General and counsel for the complainant further stated that the petitioner caused the financial ruin of respondent No.2, complainant of the FIR. I have given deep consideration to the fact that the petitioner is saddled with the responsibility of depriving the complainant from a huge amount of Rs.600,000/-. I have perused the record. The arrest of the petitioner in this case has been shown on 4th of September, 2018 and he was remanded to judicial custody on the very next day. Nothing was recovered from the possession of the petitioner during investigation of the case. This is a settled principle that the concession of bail is a procedural relief having nothing to do with the final decision of the trial. If a person, otherwise is found entitled to the concession of bail, his liberty cannot be curtailed on the ground of the charge being of heavy amount. Even otherwise the offence punishable under section 489-F PPC carries the maximum punishment of imprisonment for three years. There is no distinction regarding the sentence which can be passed, depending upon the value of the cheque. Since the above provision of law does not carry any such distinction, the maximum sentence which can be executed upon the petitioner remains to be three years if the case is proved. The case of the petitioner does not fall within the prohibitory clause of section

497(1) Cr.P.C. The august Supreme Court of Pakistan has settled the law that in such like cases the grant of bail is rule and its refusal is exception.

5. It may further be noted that the case against the present petitioner is almost entirely reliant on documentary evidence which, admittedly is in the possession of the prosecution and clearly there is no possibility of the petitioner tampering with the same. Keeping the petitioner incarcerated would tantamount to punishing him despite the fact that a person is presumed to be innocent until proven guilty. The Courts have invariably leaned favourably in the granting of bail when the case is dependent upon documentary evidence and the same is in possession of the prosecution agency. Reliance in this regard is placed on “Saeed Ahmed Vs. The State” (1996 SCMR 1132), and “Muhammad Nawaz Vs. The State through Chairman, NAB, Islamabad and another” (PLD 2008 SC 438). It has been observed by the august Supreme Court of Pakistan in the case of “Manzoor and 4 others versus The State” (PLD 1972 SC 81) as infra;

“The ultimate conviction and incarceration of a guilty person can repair the wrong caused by a mistaken relief of interim bail granted to him, but no satisfactory reparation can be offered to an innocent man for his unjustified incarceration at any stage of the case albeit his acquittal in the long run.”

In the light of the facts and circumstances of the present case, refusal of bail, at this stage, will tantamount to punishing the petitioner when his guilt is yet to be proved.

6. For the foregoing reasons the petition in hand is allowed and petitioner is ordered to be released on bail subject to furnishing bail bonds in the sum of Rs.100,000/- (Rupees One Lac Only) with one surety in the like amount to the satisfaction of learned trial court.

7. Needless to mention that any observations made in the above order are tentative in nature and shall not influence the trial court.

(Sadiq Mahmud Khurram)
Judge

Approved for reporting.

Judge

Saleem